Ordinance No. 120573

Council Bill No. 113892

The City of Seatt
Council Bill/Ordina

AN ORDINANCE relating to the Traffic Code, specifying the enforcement period for parking on public streets and municipal property, and amending and renumbering SMC 11.72.440.

CF No. _____

Date Introduced: OCT 8 2001	
Date 1st Referred: OCT 8 2001	To: (committee) Public Safety & Technology Committee
Date Re - Referred: OCT 15 2001	To: (committee) TRANSPORTATION
Date Re - Referred:	To: (committee)
Date of Final Passage: 10/22/01	Full Council Vote: 9-0
Date Presented to Mayor: 10/23/01	Date Approved: 10/29/01
Date Returned to City Clerk: 10/30/01	Date Published: 2 NOV. T.O. F.T. 1
Date Vetoed by Mayor:	Date Veto Published:
Date Passed Over Veto:	Veto Sustained:

Approved 3-C

(per) Law Dep

This file is complete and rea

Law Department

Law Dept. Review

The City of Seattle - Legislative Department

Council Bill/Ordinance sponsored by: COMPTON

Committee Action:

Approved 3-0 RJH, HLO, JC

(as Draft)
Amended

This file is complete and ready for presentation to Full Council. Committee: _____
(Initial/date)

Law Department

Law Dept. Review	OMP Review	City Clerk Review	Electronic Copy Loaded	Indexed

KD:kd/msl
113892-v2
10/19/01
V #2

ORDINANCE 120573

AN ORDINANCE relating to the Traffic Code, specifying the enforcement period for parking on public streets and municipal property, and amending and renumbering SMC 11.72.440.

WHEREAS, Ordinance 120097, a prior revision to SMC 11.72.440, increased the maximum time a car could remain parked on a City street from twenty-four (24) to seventy-two (72) hours; and

WHEREAS, Ordinance 120097 had the unintended effect, as judicially interpreted, of increasing the time necessary for the City to post official parking signs, including temporary parking restrictions, from twenty-four (24) to seventy-two (72) hours, before enforcement, causing significant delays, costs and scheduling problems to public and private projects; and

WHEREAS, it is useful and necessary to specify that the City's official parking signs, including temporary parking restrictions, shall be enforceable twenty-four (24) hours after posting; Now, Therefore,

BE IT ORDAINED BY THE CITY OF SEATTLE AS FOLLOWS:

Section 1. Section 11.72.440 of the Seattle Municipal Code is amended as follows:

SMC 11.72.440 Parking Enforcement; Seventy-two (72) hours.

A. Official signs, including temporary signs, that prohibit stopping, standing or parking shall be enforceable according to their terms twenty-four hours after posting.

((~~A.~~)) B. ((~~Unless otherwise provided by law, n~~)) No person shall park a vehicle on any street or other municipal property for a period of time longer than seventy-two (72) hours ((~~.~~)) , unless an official posted sign provides a shorter period of time, or unless otherwise provided by law.

((~~B.~~)) C. Authorized vehicles on municipal property are excluded from the provisions of this section.

((~~C.~~)) D. This section shall not apply to "junk motor vehicles" or "abandoned junk motor vehicles" as defined in this Chapter.

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((~~D.~~)) E. Vehicles in violation of this section are subject to impound as provided for in Chapter 11.30 SMC, in addition to any other penalty provided for by law.

Section 2. This ordinance shall take effect and be in force thirty (30) days from and after its approval by the Mayor, but if not approved and returned by the Mayor within ten (10) days after presentation, it shall take effect as provided by Municipal Code Section 1.04.020.

Passed by the City Council the 22nd day of October, 2001, and signed by me in open session in authentication of its passage this 22nd day of October, 2001.

Margaret Pageler
President of the City Council

Approved by me this 29th day of OCTOBER, 2001.

Paul Schell
Paul Schell, Mayor

Filed by me this 30th day of October, ~~19~~ 2001

Judith E. Pippin
City Clerk

(SEAL)

City of Seattle
Paul Schell, Mayor

Seattle Transportation
Daryl R. Grigsby, Director

October 1, 2001

Honorable Margaret Pageler
President, Seattle City Council
1100 Municipal Building
600 Fourth Avenue
Seattle, Washington 98104

Dear Council President Pageler:

Subject: Ordinance amending Ordinance 108200 and SMC 11.72.440 (Traffic Code).

REQUEST: We request the amendment of Seattle Municipal Code Section 11.72.440, Seventy-two (72) hours. The amendment to SMC 11.72.440 would provide that official parking signs would be enforceable 24 hours after posting.

BACKGROUND: The City Traffic Code, SMC section 11.72.440, currently prohibits vehicles from being parked on the street or other municipal property longer that 72 consecutive hours, except authorized vehicles parking on municipal property. Previously, this section provided a 24-hour parking maximum. The current section, in effect since September 2000, was intended to increase the maximum time a vehicle could remain parked on a city street. It had the unintended effect, as interpreted by the Seattle Municipal Court, of extending the period to post official temporary signs giving notice to clear streets for road or utility work, special events or other purposes, from 24 hours to 72 hours. While supporting the City's goal of reducing vehicle use, the 72-hour limit causes significant delays to projects, scheduling difficulties, additional costs to utilities, contractors and City departments, all of which must be borne ultimately by the citizens of Seattle.

This amendment is intended to preserve the 72-hour maximum parking limit, while also specifying that all official parking signs are enforceable 24 hours after posting. The amendment allows the City to provide 24 hours notice to clear the streets of vehicles for the purpose of authorized in-street work, special events, and removing junk motors vehicles. Officially, posted parking signs and parking control devices (i.e., time limit, loading zones, parking meters, etc.) would also be effective 24 hours after posting.

ACTING CITY CLERK

IMPORTANCE: Citizens need to know they can use alternative modes of transportation and not be penalized if their vehicle remains on the street for longer than 24 hours. Citizens, however, will be required to monitor their vehicles daily for any posted signs.

If there are any questions, please contact Bill Jack at 684-8329.

Sincerely,

Daryl Grigsby
Director

DRG:wma

Enclosure

cc: Kathleen Dayton, Law Department
Bill Jack, SeaTran

STATE OF WASHINGTON – KING COUNTY

--ss.

137938
City of Seattle,Clerk's Office

No. ORDINANCE IN FULL

Affidavit of Publication

The undersigned, on oath states that he is an authorized representative of The Daily Journal of Commerce, a daily newspaper, which newspaper is a legal newspaper of general circulation and it is now and has been for more than six months prior to the date of publication hereinafter referred to, published in the English language continuously as a daily newspaper in Seattle, King County, Washington, and it is now and during all of said time was printed in an office maintained at the aforesaid place of publication of this newspaper. The Daily Journal of Commerce was on the 12th day of June, 1941, approved as a legal newspaper by the Superior Court of King County.

The notice in the exact form annexed, was published in regular issues of The Daily Journal of Commerce, which was regularly distributed to its subscribers during the below stated period. The annexed notice, a

CT:120573 ORD.IN FULL

was published on

11/07/01

J. Stedman

Subscribed and sworn to before me on

11/07/01

Melissa M. Pascua

Notary public for the State of Washington,
residing in Seattle

MELISSA M. PASCUA
NOTARY PUBLIC
STATE OF WASHINGTON
COMMISSION EXPIRES
NOV 21, 2004

Affidavit of Publication

State of Washington, King County

City of Seattle

ORDINANCE 120573

AN ORDINANCE relating to the Traffic Code, specifying the enforcement period for parking on public streets and municipal property, and amending and renumbering SMC 11.72.440.

WHEREAS, Ordinance 120097, a prior revision to SMC 11.72.440, increased the maximum time a car could remain parked on a City street from twenty-four (24) to seventy-two (72) hours; and

WHEREAS, Ordinance 120097 had the unintended effect, as judicially interpreted, of increasing the time necessary for the City to post official parking signs, including temporary parking restrictions, from twenty-four (24) to seventy-two (72) hours, before enforcement, causing significant delays, costs and scheduling problems to public and private projects; and

WHEREAS, it is useful and necessary to specify that the City's official parking signs, including temporary parking restrictions, shall be enforceable twenty-four (24) hours after posting; Now, Therefore,

BE IT ORDAINED BY THE CITY OF SEATTLE AS FOLLOWS:

Section 1. Section 11.72.440 of the Seattle Municipal Code is amended as follows:

SMC 11.72.440 PARKING ENFORCEMENT; SEVENTY-TWO (72) HOURS.

A. Official signs, including temporary signs, that prohibit stopping, standing or parking shall be enforceable according to their terms twenty-four hours after posting.

((A.)) B. ((**Unless otherwise provided by law, n**)) No person shall park a vehicle on any street or other municipal property for a period of time longer than seventy-two (72) hours ((.)) , unless an official posted sign provides a shorter period of time, or unless otherwise provided by law.

((B.)) C. Authorized vehicles on municipal property are excluded from the provisions of this section.

((C.)) D. This section shall not apply to "junk motor vehicles" or "abandoned junk motor vehicles" as defined in this Chapter.

((D.)) E. Vehicles in violation of this section are subject to impound as provided for in Chapter 11.30 SMC, in addition to any other penalty provided for by law.

Section 2. This ordinance shall take effect and be in force thirty (30) days from and after its approval by the Mayor, but if not approved and returned by the Mayor within ten (10) days after presentation, it shall take effect as provided by Municipal Code Section 1.04.020.

Passed by the City Council the 22nd day of October, 2001, and signed by me in open session in authentication of its passage this 22nd day of October, 2001.

MARGARET PAGELER,
President of the City Council.

Approved by me this 29th day of October, 2001.

PAUL SCHELL,
Mayor.

Filed by me this 30th day of October, 2001.

(Seal) JUDITH E. PIPPIN,
City Clerk.

Publication ordered by JUDITH PIPPIN, City Clerk.

(Boldface denotes deletion.)

10/22/11 Council agenda - item #4

KD:kd/msl
113892-v2
10/19/01
V #2

CB 113892

New version 2 - corrects two typos

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Added these open parentheses (they had been mistakenly omitted)

KD:kd/msl
113892-v2
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V #2

Changed this to "2" (it mistakenly said "1").

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Passed by the City Council the _____ day of _____, 2001, and signed by me in open session in authentication of its passage this _____ day of _____, 2001.

_____
President of the City Council

Approved by me this _____ day of _____, 2001.

_____
Paul Schell, Mayor

Filed by me this _____ day of _____, 19____.

_____
City Clerk

(SEAL)

KD:kd
24 hour enforcement/SMC 11.72.440
10/1/01
V #1

ORDINANCE _____

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President of the City Council

Approved by me this _____ day of _____, 2001.

_____
Paul Schell, Mayor

Filed by me this _____ day of _____, 19____.

_____
City Clerk

(SEAL)